

Easement

Version 3.3 released on 6/29/23

PW0121213



CITY COUNCIL USE ONLY Date Received: _____ Committee Date: _____ 1 st Agenda Date: _____	Tracking #: _____ Committee: _____ Hearing Date: _____ 2nd Agenda Date: _____	CITY CLERK USE ONLY ☐ Scanned ☐ Posted Date: <u>04.02.2024</u> Item #: <u>2504.00833</u>
---	---	---

All department items requiring Council approval must be submitted through the Mayor's Office.

Primary Details

Board Approval	Other Board Name	City Council Approval ☒ Yes ☐ No
Department Public Works	Contact Name Michelle L. Lester	Email mlester@cityoftulsa.org
Easement Type Sanitary Sewer	Owner-Grantor Raines Family Foundation	Phone 918-596-7262
Bid/Project Number ES 2022-15	Project Title Spunky Creek East Branch C1	Council District 6
Section 7	Township 19	Range 15
Lot	Block	Address Wagoner County
Parcel Number 3A	Additional Information/Tracking Number	Addition UNPLATTED

Budget

Contract Types ☐ No Payments Involved ☐ Revenue Contracts ☒ Expense Contracts	Funding Source(s) 2131S00004.SewerLines.Sewer.7500N.75003308.541101:	\$28.00
	TOTAL:	\$28.00

Approvals

Department: _____	Date: <u>03.21.25</u>
Legal: _____	Date: <u>03/21/2025</u>
Board: _____	Date: _____
Mayor: _____	Date: <u>APR 02 2025</u>
Other: _____	Date: _____

Policy Statement

Background Information
Project ES 2022-15 - Spunky Creek East Branch C1, Parcel 3A

The City of Tulsa is planning a sanitary sewer project in the vicinity of the East 11th Street and the Creek Turnpike in Wagoner County. The attached Sanitary Sewer Easement is required for the project. This easement is being donated by Raines Family Foundation.

Payment request is attached to the Wagoner County Clerk for the filing fee (\$28.00).

PDZ: [Signature] MSL: [Signature] bh

Summation of the Requested Action
Mayoral approval and City Council acceptance.

Other Pertinent Details

Processing Information for City Clerk's Office

Post Execution Processing ☐ Mail vendor copy (add'l signature copies attached) ☒ Must be filed with other governmental entity ☐ Add'l governmental entity approval(s) required	Additional Routing, Processing or Contact Details Courtney Jones, 6-9549
--	--

2025 - RPE - 0153

SANITARY SEWER EASEMENT

KNOW ALL MEN BY THESE PRESENTS:

That the undersigned, **Raines Family Foundation, an Oklahoma not for profit corporation**, (Grantor), the owner of the legal and equitable title to the following real estate situated in Wagoner County, State of Oklahoma, for and in consideration of the sum of One Dollar (\$1.00) from the City of Tulsa, Oklahoma, a municipal corporation (City), and other good and valuable considerations, receipt of which is hereby acknowledged, does hereby grant and convey unto the said City of Tulsa, Oklahoma, a permanent easement through, over, under and across the following described property, situated in said County, to-wit:

See Exhibit "A"

for the purpose of permitting the City to construct a **sanitary sewer** thereon, through, over, under and across said property, together with all necessary and convenient appurtenances thereto; and to use and maintain the same, and of affording the City, its officers, agents, employees, and/or all persons under contract with it, the right to enter upon said premises and strip of land for the purpose of surveying, excavating for, constructing, operating, repairing, and maintaining of such construction.

The City is hereby given and granted the exclusive possession of said above premises for the purposes aforesaid and Grantor, for itself and administrators, successors and assigns, covenants and agrees that no building, structure, fence, wall or other above ground obstruction will be placed, erected, installed or permitted upon the above described land; and further covenants and agrees that in the event the terms of this paragraph are violated by the Grantor, or any person in privity with it, such violation will be promptly corrected and eliminated immediately upon receipt of notice from City, or City shall have the right to remove or otherwise eliminate such violation, and Grantor, its administrators, successors and assigns, shall promptly pay the actual cost thereof.

TO HAVE AND TO HOLD Such easement and right-of-way unto the City, its successors or assigns, forever.

Dated this 28 day of February, 2025.

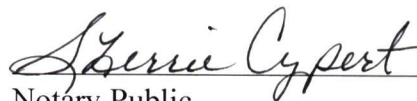
**Raines Family Foundation,
an Oklahoma not for profit corporation,**

By: 
Name: Michael A. Raines
Title: President

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

This instrument was acknowledged before me on this 28 day of February, 2025,
by **Michael A Raines, President**, Raines Family Foundation, an Oklahoma not for profit
corporation.

Given under my hand and seal of office the day and year last above written.


Notary Public

My commission expires:

11-23-2028



APPROVED AS TO FORM:



City Attorney - *Asst.*

APPROVED AS TO SUBSTANCE:



Director

ACCEPTED BY CITY COUNCIL:

Date: _____

BY: _____

Name: Phil Lakin, Jr.

Title: Chairman

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the _____ day of _____, 2025, personally appeared **Phil Lakin, Jr.**, to me known to be the identical person who accepted the within and foregoing instrument as **Chairman** of the City Council of the City of Tulsa, Oklahoma, and acknowledged to me that he accepted the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City Council of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

APPROVED BY MAYOR:

CITY OF TULSA, OKLAHOMA,
a municipal corporation

Date: _____

BY: _____

Name: Monroe Nichols IV

Title: Mayor

ATTEST:

City Clerk

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the _____ day of _____, 2025, personally appeared **Monroe Nichols IV**, to me known to be the identical person who approved the within and foregoing instrument as **Mayor** of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

PARCEL NO. _____ 3A
 COUNTY _____ WAGONER

LEGAL DESCRIPTION

RAINES FAMILY FOUNDATION
 PERMANENT EASEMENT

A TRACT LAND LOCATED IN THE NORTHEAST QUARTER (NE/4), SECTION SEVEN (7), TOWNSHIP NINETEEN (19) NORTH, RANGE 15 EAST OF THE INDIAN BASE AND MERIDIAN, WAGONER COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF, AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

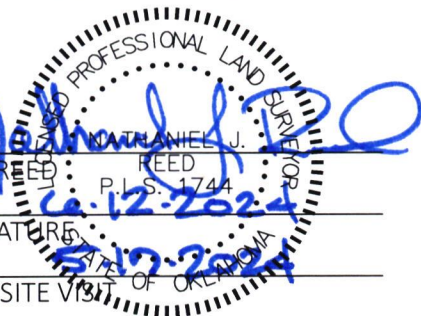
COMMENCING AT THE NORTHEAST CORNER OF SAID NE/4; THENCE SOUTH 01°36'30" EAST AND ALONG THE EAST LINE OF SAID NE/4, FOR A DISTANCE OF 785.13 FEET; THENCE SOUTH 88°23'30" WEST AND PERPENDICULAR TO SAID EAST LINE, FOR A DISTANCE OF 114.48 FEET TO THE **POINT OF BEGINNING**; THENCE SOUTH 12°45'30" EAST, FOR A DISTANCE OF 254.21 FEET; THENCE SOUTH 24°06'30" WEST, FOR A DISTANCE OF 316.81 FEET; THENCE SOUTH 88°30'06" WEST, FOR A DISTANCE OF 55.45 FEET; THENCE NORTH 24°06'30" EAST, FOR A DISTANCE OF 324.11 FEET; THENCE NORTH 12°45'30" WEST, FOR A DISTANCE OF 276.71 FEET; THENCE SOUTH 64°40'51" EAST, FOR A DISTANCE OF 63.52 FEET TO THE **POINT OF BEGINNING**. CONTAINING 29,295.91 SQUARE FEET OR 0.67 ACRES, MORE OR LESS.

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

REAL PROPERTY CERTIFICATION:

I, NATHANIEL J. REED, CERTIFY THAT THE ATTACHED LEGAL DESCRIPTION CLOSES IN ACCORD WITH EXISTING RECORDS, IS A TRUE REPRESENTATION OF THE REAL PROPERTY AS DESCRIBED, AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.

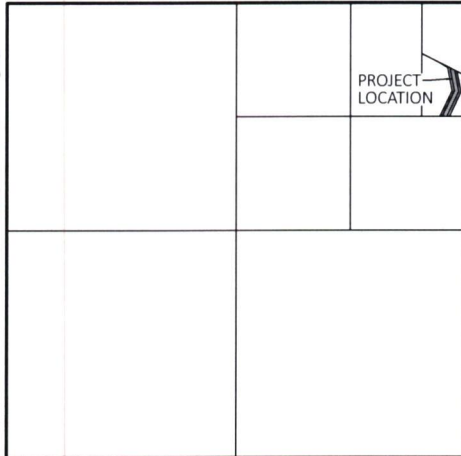
NATHANIEL J. REED
 DATE OF SIGNATURE: 6-12-2024
 DATE OF LAST SITE VISIT: 6-12-2024



EAST 11th STREET SOUTH

PLAT OF SURVEYPARCEL NO. 3ACOUNTY WAGONERRAINES FAMILY FOUNDATION
PERMANENT EASEMENT

SOUTH 193rd EAST AVENUE



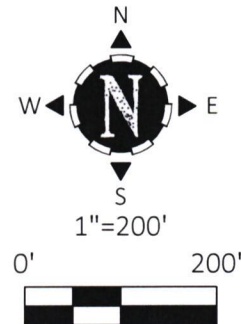
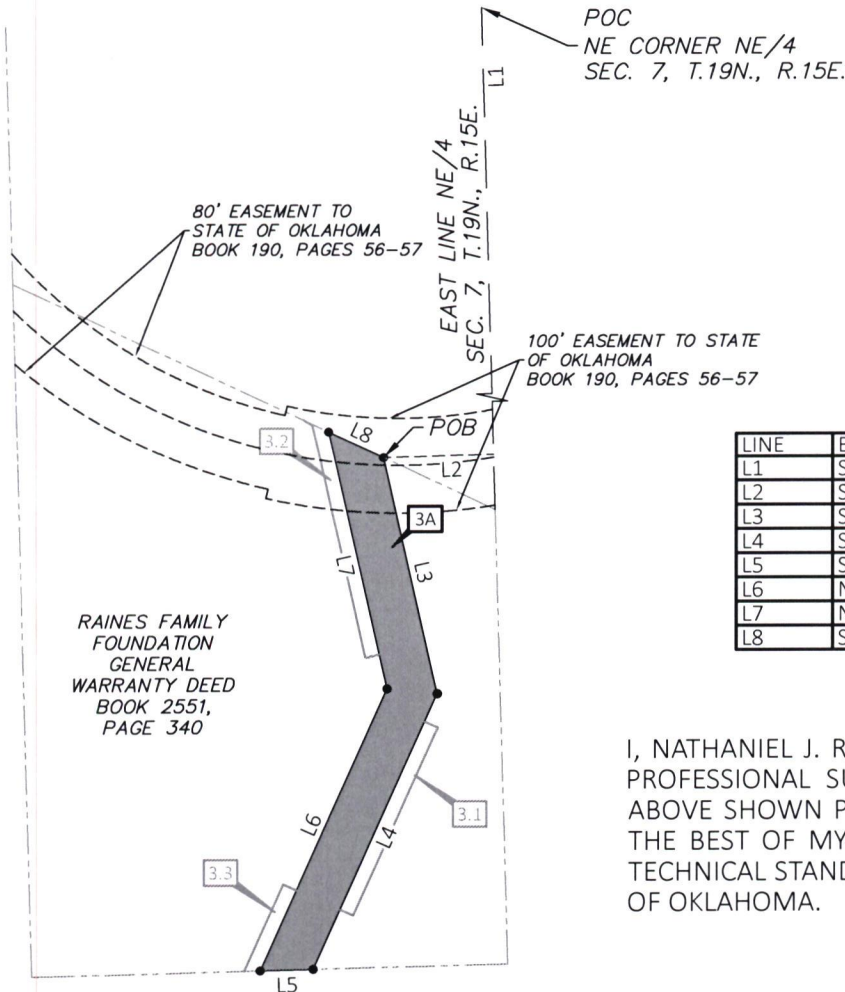
SOUTH 209th EAST AVENUE

EAST 21st STREET SOUTH

LEGAL DESCRIPTION: A TRACT OF LAND LOCATED
IN THE NE/4 OF SECTION 7, TOWNSHIP 19 NORTH,
RANGE 15 EAST, WAGONER COUNTY, STATE OF
OKLAHOMA

SEC 7 T 19 N R 15 E

TEMPORARY EASEMENT	0.00	SF	0.00	ACRES
PERMANENT EASEMENT	29,295.91	SF	0.67	ACRES



LINE	BEARING	DISTANCE
L1	S 01°36'30" E	785.13'
L2	S 88°23'30" W	114.48'
L3	S 12°45'30" E	254.21'
L4	S 24°06'30" W	316.81'
L5	S 88°30'06" W	55.45'
L6	N 24°06'30" E	324.11'
L7	N 12°45'30" W	276.71'
L8	S 64°40'51" E	63.52'

RAINES FAMILY
FOUNDATION
GENERAL
WARRANTY DEED
BOOK 2551,
PAGE 340

I, NATHANIEL J. REED OF THE STATE OF OKLAHOMA, AND A PROFESSIONAL SURVEYOR, DO HEREBY CERTIFY THAT THE ABOVE SHOWN PLAT OF SURVEY IS TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.

LEGEND

- POB POINT OF BEGINNING
 POC POINT OF COMMENCEMENT
 • 3/8" IRON PIN SET w/CAP (#4916)

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE
 COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

NATHANIEL J. REED, P.L.S. 1744

DATE OF SIGNATURE 12-20-2024DATE OF LAST SITE VISIT 12-20-2024**EXHIBIT "A"**

MUNIS for ES 2022-15

As of 3/12/2025

Project string

▲ Project *	2131S00004	Spunky Creek MS Interceptor S - C1
▲ Phase *	SewerLines	Sewer lines
▲ Task *	Sewer	Sewer projects
Sub-Task *	7500N	TMUA Sewer Capital Projects

Name * Spunky Creek MS Interceptor S

Short Name * Spunky Crk

Status Active ▼

Projected date range 03/24/2021 to 03/24/2025

Actual date range to

Project String Balances

GL Accounts



Project Year 2025

Original Budget	.00	{
Transfers - In	170,862.86	{
Transfers - Out	-862.81	{
Revised Budget	982,373.88	
Actual (Memo)	42,086.24	{
Encumbrances	104,598.73	{
SOY Encumbrances	.00	
Requisitions	.00	{
Inception to SOY	493,030.92	
Available	342,657.99	
Percent Used	65.12	

Default GL account

Fund SubFund

Org Object

75003308

541101

MUNIS

INVOICE COVER SHEET

Vendor Name and Address

Wagoner County Clerk

**Department #: 32- Public
Works****Date: 3/12/2025****Special Handling**

☐ Wire Transfer
☒ Will Pick up
Email: PWAdmin@cityoftulsa.org

ACCOUNTS PAYABLE USE

Allocation code: _____

MUNIS VENDOR NUMBER

2154-2

MUNIS CONTRACT #**PROJECT STRING** (if applicable)**ORG****OBJECT****AMOUNT**2131S00004.SewerLines.Sewer.750 *bn*

75003308

541101

\$28.00

\$0.00

\$0.00

INVOICE NUMBER/DESCRIPTION

Filing Fees

Project ES 2022-15

Parcel 3A

REMARKS**Purchase
Authority**☐**Special Approval**☐**Exception**☐**Contract****Invoice**☐**Original Attached**☐**Prepay (Attach form)**☐**Refund****Affidavit**☒**Affidavit attached (form TUL-373)
For invoices over \$25,000**☐**Not applicable****Prepared by:** Bruce Hutton*Munis Workflow approval***Date:** 3/12/2025